IN THE NATIONAL COMPANY LAW TRIBUNAL, SPECIAL BENCH - I, CHENNAI

CA(CAA)/11/(CHE)2022

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Composite *Scheme of Arrangement*

1. INTERSEA MARITIME LIMITED

... Applicant No.1 /Transferee Company/ Resulting Company

2. FOUR M MARITIME PRIVATE LIMITED

... Applicant No.2 / Transferor Company

3. BUHARI HOLDINGS PRIVATE LIMITED

... Applicant No.3/ Demerged Company

CORAM

Justice (Retd) S.RAMATHILAGAM, MEMBER (JUDICIAL)

SAMEER KAKAR, MEMBER (TECHNICAL)

C O R R I G E N D U M

In exercise of powers under Rule 154 of National Company Law Tribunal Rules, 2016, the Order dated 06.07.2022 is rectified as under;

At Page 17 of 19 of the Order, at para (vi) in the 4th and 5th Line, instead of "Trinity Mirror" (All India Edition) shall be read as **"Business Standard" (All India Edition)"**

-Sd-

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-

Justice (Retd) S. RAMATHILAGAM
MEMBER (JUDICIAL)

DATED AT CHENNAI ON THIS 18TH DAY OF JULY 2022

201

IN THE NATIONAL COMPANY LAW TRIBUNAL, SPECIAL BENCH - I, CHENNAI

CA(CAA)/11/(CHE)2022

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Composite *Scheme of Arrangement*

1. INTERSEA MARITIME LIMITED
CIN NO: U63012TN1998PLC040506
BUHARI TOWERS, SIXTH FLOOR,
NO.4, MOORES ROAD,
CHENNAI – 600 006

... Applicant No.1 /Transferee Company/ Resulting Company

2. FOUR M MARITIME PRIVATE LIMITED
CIN NO: U65993TN1999PTC041716
BUHARI TOWERS, SIXTH FLOOR,
NO.4, MOORES ROAD,
CHENNAI – 600 006

... Applicant No.2 / Transferor Company

3. BUHARI HOLDINGS PRIVATE LIMITED
CIN NO: U45201TN1989PTC017001
NO.4, MOORES ROAD,
CHENNAI – 600 006

... Applicant No.3/ Demerged Company

Order Pronounced on ***6th July 2022***

CORAM

Justice (Retd) S.RAMATHILAGAM, MEMBER (JUDICIAL)

SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): Jayanth Viswanathan, PCS

COMMON ORDER

Per: **SAMEER KAKAR, MEMBER (TECHNICAL)**

This is a joint Company Application filed by the Applicant Companies, namely **INTERSEA MARITIME LIMITED** (for brevity "Applicant No.1/ Transferee Company/ Resulting Company") and **FOUR M MARITIME PRIVATE LIMITED** (for brevity "Applicant No.2/Transferor Company") **BUHARI HOLDINGS PRIVATE LIMITED** (for brevity Applicant No.3/ Demerged Company") under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also appended as "Annexure – A1, B1 & C1"to the CA/CAA/11(CHE) 2022.

2. The Scheme provides for the following to take place chronologically;

a) Reduction of share capital of the Transferee Company as envisaged in Part II of the Scheme.

b) Selective reduction of share capital of the Transferor Company as envisaged in Part III of the Scheme

c) Amalgamation of the entire undertaking of the Transferor Company with the Transferee Company as envisaged in Part IV of the Scheme.

d) Demerger of the shipping undertaking of the Demerged Company in to the Resulting Company as envisaged in PART V of the Scheme.

3. The said Scheme is also appended as "Annexure – A1, B1 & C1" to the CA/CAA/11(CHE) 2022. The Applicant Companies in this Company Application has sought for the following reliefs:

Transferee / Resulting Company/Applicant No.1 Company

a) Convening, holding and conducting of a meeting of the Equity Shareholders, secured and unsecured Creditors.

b) Appointing chairperson and Scrutinizer for the said meetings and fixing their terms of appointment including remuneration.

c) Fixing the quorum and the procedure to be followed at said meetings, including voting in person or by proxy

d) Issuing notice for meeting of Equity shareholders, secured and unsecured creditors.

e) Publication of advertisement of such notice in Makkal Kural (Vernacular) & Trinity Mirror (English) Newspapers.

f) Issuing notices to the statutory authorities including Income Tax, Reserve Bank of India, Registrar of Companies, Regional Director and Official Liquidator and such other Authorities as may be determined by the Hon'ble Tribunal.

g) And pass such other order or orders as this Hon'ble Tribunal may deem fit and proper in the circumstances of the case and render justice.

Transferor / Applicant No.2 Company

a) Dispensing with Convening, holding and conducting of a meeting of the Equity Shareholders and unsecured Creditors.

b) Issuing notices to the statutory authorities including Income Tax, Reserve Bank of India, Registrar of Companies, Regional Director and Official Liquidator and such other Authorities as may be determined by the Hon'ble Tribunal.

c) And pass such other order or orders as this Hon'ble Tribunal may deem fit and proper in the circumstances of the case and render justice.

Demerged / Applicant No.3 Company

a) Convening, holding and conducting of a meeting of the Equity Shareholders and unsecured Creditors.

b) Appointing chairperson and Scrutinizer for the said meetings and fixing their terms of appointment including remuneration.

c) Fixing the quorum and the procedure to be followed at said meetings, including voting in person or by proxy

d) Issuing notice for meeting of Equity shareholders, secured and unsecured creditors.

e) Publication of advertisement of such notice in Makkal Kural (Vernacular) & Trinity Mirror (English) Newspapers.

f) Issuing notices to the statutory authorities including Income Tax, Reserve Bank of India, Registrar of Companies, Regional Director and Official Liquidator and such other Authorities as may be determined by the Hon'ble Tribunal.

g) And pass such other order or orders as this Hon'ble Tribunal may deem fit and proper in the circumstances of the case and render justice.

4. An affidavit in support of the above applications sworn for and on behalf of the Applicant No.1/Transferee Company/Resulting Company, Applicant Company No.2/ Transferor Company and

Applicant Company No.3/Demerged Company has been filed by one R.Swetha in the capacity as Company Secretary of the Applicant No.1/Transferee Company/Resulting Company, and Authorised Signatory of the Applicant Company No.2/ Transferor Company and Applicant Company No.3/Demerged Company along with the applications and it is also represented that the Registered offices of all the Applicant Companies are situated within the territorial jurisdiction of the Bench of this Tribunal and falling within the purview of Registrar of Companies, Chennai.

5. INTERSEA MARITIME LIMITED

APPLICANT NO.1/ TRANSFEREE COMPANY/ RESULTING COMPANY –

(i) There are 9 (Nine) Equity Shareholders and list of shareholders to this effect is placed at page Nos 244 & 245 of the typed set filed with the application and sought for Convening, Holding and Conducting of the meeting.

(ii) There is One Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 239 to 240 of the typed set filed along with the and sought for Convening, Holding and Conducting of the meeting.

(iii) There are 19 (Ninteen) Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 241 to 243 of the typed set filed with the application and sought for Convening, Holding and conducting of the meeting.

6. FOUR M MARITIME PRIVATE LIMITED
APPLICANT NO.2/ TRANSFEROR COMPANY

(i) There are 3 (Three) Equity Shareholders and list of shareholders to this effect is placed at page No 402 of the typed set filed with the application and consent by way of Affidavit given by all the Equity Shareholders is placed at Page Nos.408 to 414C and sought for dispensation with holding of meeting.

(ii) There is Nil Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 398 to 399 of the typed set filed along with the application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

(iii) There are 4(Four) Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 400 to 401 of the typed set filed with the application and consent by way of Affidavit given by the Unsecured Creditor who holds 99.97% of the total value of credit is placed at Page Nos.405 to 407 and sought for dispensation with holding of meeting.

7. BUHARI HOLDINGS PRIVATE LIMITED
APPLICANT NO.3/ DEMERGED COMPANY

(i) There are 12 (Twelve) Equity Shareholders and list of shareholders to this effect is placed at page Nos. 611 to 612 of the typed set filed with the application and sought for convening, holding and conducting of the meeting.

(ii) There is Nil Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 607 to 608 of the typed set filed along with the application. Hence the necessity of convening, holding and conducting the meeting does not arise.

(iii) There are 7(Seven) Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 609 to 610 of the typed set filed with the application and sought for convening, holding and conducting of the meeting.

8. We have perused the applications and the connected documents / papers filed therewith including the Scheme contemplated between the Applicant companies.

9. From the certificate of incorporation filed, it is evident that Applicant No.1/Transferee Company/Resulting Company was incorporated under the provisions of Companies Act, 1956 on 15th May 1998 under the name and style of "East Coast Terminal Operations and Port Services Limited". The name of the Applicant No.1 Company was changed to "Intersea Maritime Limited" with effect from 09th September 2019 with Registrar of Companies, Tamil Nadu as a Public Limited Company. The Authorized Share Capital of the Applicant No.1/Transferee Company/Resulting Company as on 31.03.2021 as follows:

PARTICLULARS	AMOUNT IN RS.
AUTHORISED CAPITAL 6,00,00,000 equity shares of Rs.10 each	60,00,00,000
TOTAL	**60,00,00,000**
ISSUED, SUBSCRIBED AND PAID UP CAPITAL 5,57,90,788 equity shares of Rs.10 each	55,79,07,880
TOTAL	**55,79,07,880**

10. From the certificate of incorporation filed, it is evident that Applicant Company No.2/ Transferor Company was incorporated under the provisions of Companies Act, 1956 on 11th January 1999 under the name and style of "Four M Holdings Private Limited" . The name of the Transferor Company was changed to " Four M Maritime Private Limited" with effect from 17th September 2001 with Registrar of Companies, Tamil Nadu as a Private Limited Company. The Authorized Share Capital of the Applicant Company No.2/ Transferor Company as on 31.03.2021 as follows:

PARTICLULARS	AMOUNT IN RS.
AUTHORISED CAPITAL 4,50,000 equity shares of Rs.100 each	4,50,00,000
TOTAL	**4,50,00,000**
ISSUED, SUBSCRIBED AND PAID UP CAPITAL 4,17,798 equity shares of Rs.100 each	4,17,79,800
TOTAL	4,17,79,800

11. From the certificate of incorporation filed, it is evident that Applicant Company No.3/ Demerged Company was incorporated under the provisions of Companies Act, 1956 on 08th March 1989, under the name and style of "Buharia Holdings Private Limited". The name of the Demerged Company was changed to "Buhari Holdings Private Limited with effect from 28.05.2004 with Registrar of Companies, Tamil Nadu as a Private Limited Company. The Authorized Share Capital of the Applicant Company No.3/Demerged Company as on 31.03.2021 as follows:

PARTICLULARS	AMOUNT IN RS.
AUTHORISED CAPITAL 10,00,000 equity shares of Rs.100 each	10,00,00,000
TOTAL	**10,00,00,000**
ISSUED, SUBSCRIBED AND PAID UP CAPITAL 9,47,802 equity shares of Rs.100 each	9,47,80,200
TOTAL	**9,47,80,200**

12. The Applicant companies have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses. The Applicant Companies have filed their last available Audited Financial Statements for the year ended as on 31.03.2021 and the unaudited financial statements as on 31.10.2021.

13. The Board of Directors of the Applicant Companies vide meetings held on 19.11.2021 have unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the companies.

14. The Appointed date as specified in the Scheme is as follows, subject to the directions of this Tribunal;

(i) In respect to PART–II of the Scheme it is 31.03.2021

(ii) In respect of PART–III of the Scheme, it is 31.03.2021

(iii) In respect of PART–IV of the Scheme it is 01.04.2021

(iv) In respect of PART–V of the Scheme it is 01.04.2021

15. The Statutory Auditors of all the Applicant Companies have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards is in compliance with Section 133 of the Companies Act, 2013.

16. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith this Tribunal propose to issue the following directions and issue of notices including by way of paper publication as follows: -

A) IN RELATION TO THE APPLICANT NO.1/ TRANSFEREE COMPANY/ RESULTING COMPANY:

(i) **With respect to Equity shareholders:**

Meeting of the Equity Shareholders of the Applicant No.1/ Transferee / Resulting Company is directed to be held at **10:00 AM** on **20.08.2022** at the registered office of the Resulting Company/ Transferor Company/ Demerged Company or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

(ii) **With respect to Secured Creditors:**

Meeting of the Secured Creditors of the Applicant No.1/ Transferee / Resulting Company is directed to be held at **11:00 AM** on **20.08.2022** at the registered office of the Resulting Company/ Transferor Company/ Demerged Company or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

(iii) **With respect to Unsecured Creditors:**

Meeting of the Unsecured Creditors of the Applicant No.1 / Transferee Company/ Resulting Company is directed to be held at **12:00 PM** on **20.08.2022** at the registered office of the Resulting Company/ Transferor Company/ Demerged Company or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

B) IN RELATION TO THE APPLICANT NO.2/ TRANSFEROR COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Applicant No.2/ Transferor Company that there are 3 Equity shareholders in the Company whose consents by way of affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is ***dispensed with***.

(ii) **With respect to Secured Creditors:**

Since it is represented by the Applicant No.1 / Transferee Company/ Resulting Company that there are Nil Secured

Creditors in the Company hence the necessity of Conven ing, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Applicant No.2/ Transferor Company that there are 4 Unsecured Creditors in the Company whose consents by way of affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is ***dispensed with***.

C) IN RELATION TO THE APPLICANT NO.3/ DEMERGED COMPANY :

(i) **With respect to Equity shareholders:**

Meeting of the Equity Shareholders of the Applicant No.3/ Demerged Company is directed to be held at **02:00 PM** on **20.08.2022** at the registered office of the Resulting Company/ Transferor Company/ Demerged Company or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices

(ii) **With respect to Secured Creditors:**

Since it is represented by the Applicant No.3/ Demerged Company that there are Nil Secured Creditor in the Company

hence the necessity of Convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Meeting of the Unsecured Creditors of the Applicant No.3/ Demerged Company is directed to be held at **03:00 PM** on **20.08.2022** at the registered office of the Resulting Company/ Transferor Company/ Demerged Company or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

17. The quorum for the meetings of the Applicant No.1/Transferee Company/Resulting Company shall be as follows;

S.No	CLASS	QUORUM
1	EQUITY SHAREHOLDERS	4
2	SECURED CREDITORS	1
3	UNSECURED CREDITORS	3

18. The quorum for the meetings of the Applicant Company No.3/Demerged Company shall be as follows;

S.No	Class	Quorum
1	Equity Shareholders	5
2	Unsecured Creditors	2

i) The Chairperson appointed for the above said meeting shall be **Ms. R.V. Yajura Devi,** *Advocate (Mob:- 80562 99452)* The fee of the Chairperson for the aforesaid meeting shall be **₹50,000/- *(Rupees Fifty Thousand Only)*** in addition to meeting his incidental expenses.

ii) **Ms. Nithya Pasupathy**, *PCS (Mob: 95660 33007)* is appointed as a Scrutinizer and would be entitled to fee of **₹40,000 (Rupees Forty Thousand only)** for services in addition to meeting incidental expenses. The Chairperson(s) will file the reports of the meeting within a week from the date of holding of the above said meetings.

iii) In case the quorum as noted above, for the above meeting of the Applicant Companies is not present at the meeting, then the meeting shall be adjourned by half an hour, and thereafter the person(s) present and voting shall be deemed to constitute the quorum. For the purpose of computing the quorum the valid proxies shall also be considered, if the proxy in the prescribed form, duly signed by the person entitled to attend and vote at the meeting, is filed with the registered office of the applicant companies at least 48 hours before the meeting. The Chairperson and Alternate Chairperson appointed herein along with Scrutinizer shall ensure that the proxy registers are properly maintained. However, every endeavour should be

made by the applicant companies to attain at least the quorum fixed, if not more in relation to approval of the scheme.

iv) The meetings shall be conducted as per applicable procedure prescribed under the MCA Circular MCA General Circular Nos. (i) 20/2020 dated 5th May, 2020 (AGM Circular), (ii) 14/2020, dated 08.04.2020 (EGM Circular-I) and (iii) 17/2020 dated 13.04.2020 (EGM Circular-II);

v) That individual notices of the above said meetings shall be sent by the Applicant Company through registered post or speed post or through courier or e-mail, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with a copy of Scheme, copy of explanatory statement, required to be sent under the Companies Act, 2013 and the prescribed form of proxy shall also be sent along and in addition to the above any other documents as may be prescribed under the Act or rules may also be duly sent with the notice.

vi) That the Applicant Company shall publish advertisement with a gap of atleast 30 clear days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in the English Daily "*Trinity Mirror*" (All India Edition), and "*Makkal Kural*" *Tamil* (Tamil Nadu Edition) in Vernacular stating the copies of Scheme, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and

the form of proxy shall be provided free of charge at the registered office of the respective Applicant Companies.

vii) The Chairperson shall as aforestated be responsible to report the result of the meeting within a period of 3 days of the conclusion of the meeting with details of voting on the proposed scheme.

viii) The companies shall individually send notice to concerned Regional Director, MCA, Registrar of Companies Chennai, Official Liquidator, The Reserve Bank of India and the Income Tax Authorities, as well as other Sectoral regulators who may have significant bearing on the operation of the applicant companies or the Scheme *per se* along with copy of required documents and disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, Amalgamations) Rules, 2016.

ix) The applicant companies shall further furnish copy of the Scheme free of charge within 1 day of any requisition for the Scheme made by every creditor or member of the applicant companies entitled to attend the meetings as aforesaid.

x) The Authorized Representative of the Applicant Companies shall furnish an affidavit of service of notice of meetings and publication of advertisement and compliance of all directions contained herein at least a week before the proposed meetings.

xi) All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

19. The Applications stand **allowed** on the aforesaid terms.

-Sd-

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-

Justice (Retd) S. RAMATHILAGAM
MEMBER (JUDICIAL)

SriramAnanth.V